

fine, is the tenant for life to contribute nothing, because he can excuse himself under the same plea?

8. From the nature of leaseholds for *lives* it seems difficult to discover any other principle of adjustment than one of the following:—

First, That the tenant for life and the remainderman should contribute according to their *chance of benefit at the time of the *renewal*, in which case the proportions [*375] would be settled thus:—The chance of benefit to the tenant for life is the value of the new life commencing from the death of the last surviving original *cestui que vie*, and determining on the death of the tenant for life. The chance of benefit to the remainderman is the value of the new life commencing on the death of the original *cestuis que vie* after the death of the tenant for life. In the proportion of these two values would be the respective contributions.

Secondly, That the *remainderman's* proportion should be regulated by the *actual benefit* derived. Thus, if the new *cestui que vie* die in the lifetime of any of the original *cestuis que vie*, or of the tenant for life, the remainderman takes no benefit and has nothing to pay. In this case the tenant for life is the *loser*. Should the new *cestui que vie* survive the original *cestuis que vie* and also the tenant for life, the value of the new life should be taken at the tenant for life's death, and that interest be paid for by the remainderman. It might happen that the original *cestuis que vie* and the tenant for life might die soon after the renewal, and then the estimated value of the new life would be greater than the whole fine; and in such a case the tenant for life would be a *gainer*. Thus the tenant for life might sometimes be a *gainer*, sometimes a *loser*: the remainderman would never either gain or lose, but would pay the exact value of the interest which he actually took (a).

Thirdly, That, *vice versâ*, the *tenant for life's* proportion should be regulated by the actual benefit derived, and that the contingent loss or gain, as the case might be, should fall

(a) See Lord Eldon's remarks in *White v. White*, 9 Ves. 559, which, however, are very obscurely worded.